

FEDERAL MARITIME COMMISSION

ORLEANS INTERNATIONAL, INC., *Complainant*

v.

HAPAG LLOYD AG, *Respondent*.

DOCKET NO. 26-04

Served: March 19, 2026

NOTICE OF FILING OF COMPLAINT AND ASSIGNMENT

Notice is given that a complaint has been filed with the Federal Maritime Commission (the “Commission”) by Orleans International, Inc. (the “Complainant”) against Hapag Lloyd AG (the “Respondent”). Complainant states that the Commission has subject-matter jurisdiction over the complaint pursuant to the Shipping Act of 1984, as amended, 46 U.S.C. § 41301 *et seq.*, and personal jurisdiction over Respondent as a vessel-operating ocean common carrier, as defined in 46 U.S.C. § 40102(18).

Complainant is a corporation existing under the laws of the state of Michigan with its principal place of business located in Farmington Hills, Michigan.

Complainant identifies Respondent Hapag Lloyd AG as a company existing under the laws of the Federal Republic of Germany with its principal place of business located in Hamburg, Germany, whose agent in the United States is Hapag-Lloyd (America) LLC, a limited liability company existing under the laws of the state of Delaware with its principal place of business located in Atlanta, Georgia.

Complainant alleges that Respondents violated 46 U.S.C. §§ 41102(c) and 41104(a)(10), and 46 C.F.R. § 545.5. Complainant alleges these violations arose from the assessment of

demurrage and detention charges during periods of time in which Complainant's ability to pick up or return containers was constrained due to circumstances beyond its control, and other acts or omissions of Respondent.

An answer to the complaint must be filed with the Commission within 25 days after the date of service.

The full text of the complaint can be found in the Commission's electronic Reading Room at <https://www2.fmc.gov/readingroom/proceeding/26-04/>. This proceeding has been assigned to the Office of Administrative Law Judges. The initial decision of the presiding judge shall be issued by March 19, 2027, and the final decision of the Commission shall be issued by October 4, 2027.

David Eng
Secretary